

Smt. Kamlesh Rai v. State of U.P. and 4 Others

High Court of Judicature at Allahabad · Division Bench · 13 January 2023 · Writ - C No. 658 of 2023 · **Writ disposed as infructuous after the theft recovery citation was withdrawn.**

HEADNOTE

A recovery citation for alleged electricity-theft dues was withdrawn by the licensee, which stated that fresh proceedings would be initiated strictly under clause 6.8 of the U.P. Electricity Supply Code, 2005. The writ was disposed of as nothing survived. The court did not examine the demand.

FACTUAL SUMMARY

Smt. Kamlesh Rai was aggrieved by a recovery citation dated 20 July 2022, issued for electricity dues in a case of alleged theft. In the writ before the Allahabad High Court, counsel for the Electricity Department produced a communication dated 11 January 2023 from the Executive Engineer to the Additional District Magistrate (Finance and Revenue), Gorakhpur. That communication recorded withdrawal of the recovery citation and stated that fresh proceedings would be initiated strictly in accordance with clause 6.8 of the Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

Withdrawal of theft recovery citation for fresh clause 6.8 proceedings

HOLDING

Where the licensee withdraws the recovery citation issued for alleged theft dues and states that fresh proceedings will be initiated strictly in accordance with clause 6.8 of the Electricity Supply Code, 2005, the writ challenging that citation does not survive and is disposed of without a decision on the demand. ¶ 1

PRINCIPLE TAGS

assessment-6.8-alternate-remedy

The writ was disposed of without a decision on alleged theft dues once the licensee withdrew the recovery citation and stated that fresh proceedings would be initiated strictly under clause 6.8. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ALLEGED THEFT DUES WERE LAWFULLY ASSESSED OR RECOVERABLE

The citation was withdrawn and the petition was disposed of as nothing survived. The court did not examine the demand or the fresh clause 6.8 proceedings. ¶ 1